

The Puwad Seeds Grading and Marking Rules, 2009

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Union of India - Act

The Puwad Seeds Grading and Marking Rules, 2009

UNION OF INDIA

India

The Puwad Seeds Grading and Marking Rules, 2009

Rule THE-PUWAD-SEEDS-GRADING-AND-MARKING-RULES-2009 of 2009

Published on 23 November 2009

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The Puwad Seeds Grading and Marking Rules, 2009

Published vide Notification No. G.S.R. 841(E), dated 23rd November, 2009

Ministry of Agriculture

(Department of Agriculture and Co-operation)

G.S.R. 841(E). - Whereas the draft of the Puwad Seeds Grading and Marking Rules, 2009 in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) were published in the Gazette of India Part II, Section 3, Sub-section (i), vide number G.S.R. 401(E), dated the 4th June, 2009, inviting objections and suggestions from all persons likely to be affected thereby within forty-five days from the date on which copies of the said notification published in the Gazette of India were made available to the public.

And whereas the copies of the said notification were made available to the public on the 12th June, 2009 and whereas the objections and suggestions received from the public in respect of the said draft rules have been duly considered.

Now, therefore, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937), the Central Government hereby makes the following rules, namely :-

Rules

1.

Short title, application and commencement.

(1)

These rules may be called the Puwad Seeds Grading and Marking Rules, 2009.

(2)

They shall come into force on the date of their publication in the Official Gazette.

(3)

They shall apply to Puwad seeds obtained from Puwad pods or beans of Plant Cassia tora of the family Leguminosae.

2.

Definitions.

(a)

"Agricultural Marketing Adviser" means the Agricultural Marketing Adviser to the Government of India;

(b)

"Authorised packer" means a person or a body of persons who has been granted a certificate of authorisation to grade and mark Puwad seeds in accordance with the grade standards and procedure under these rules;

(c)

"Certificate of Authorisation" means a certificate issued under the provisions of the General Grading and Marking Rules, 1988 authorising a person or a body of persons to grade and mark Puwad seeds with the grade designation mark;

(d)

"General Grading and Marking Rules" means the General grading and Marking Rules, 1988 made under section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937);

(e)

"Grade designation mark" means the "Agmark Insignia" referred to in rule 5.

(f)

"Schedule" means the Schedule appended to these rules.

3.

Grade designations.

- The Grade designations to indicate the quality of Puwad seeds shall be as set out in column (1) of Criteria for Grade designation of the Schedule II.

4.

Quality.

- For the purpose of these rules, the quality of Puwad seeds shall be as given in Schedule II.

5.

Grade designation mark.

- The grade designation mark shall consist of "Agmark insignia" and a design incorporating the certificate of authorisation number, the word "Agmark", name of commodity and grade designation resembling the design as set out in Schedule I.

6.

Method of packing.

(1)

Puwad seeds shall be packed in gunny bags or jute bags, polywoven bags, poly pouches, cloth bags, high density poly ethylene (HDPE) laminated paper bags, new or un-mended B-Twill bags or any other suitable packing material with inner lining of Food Grade quality as approved by the Agricultural Marketing Adviser to the Government of India.

(2)

The packing material shall be clean, sound, free from insect or fungal infestation and should not impart any toxic substance or undesirable odour or flavour to the product.

(3)

Puwad Seeds shall be packed in pack sizes as per the instructions issued by Agricultural Marketing Adviser from time to

time.

(4)

Graded material of small pack sizes of the same lot or batch and grade may be packed in a master container with complete details thereon along with grade designation mark.

(5)

Each package shall contain Puwad seeds of the same type and of the same grade designation.

(6)

Each package shall be properly and securely closed and sealed and the mouth of the bag should be stitched as to disallow sweating or spilling.

7.

Method of Marking.

(1)

The grade designation mark shall be securely affixed to or printed on each package in a manner specified by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules, 1988.

(2)

In addition to the grade designation mark, following particulars shall be clearly and indelibly marked on each package.

(a)

Name and address of the packer;

(b)

Place of packing or processing;

(c)

Date of packing;

(d)

Variety or trade name (optional);

(e)

Crop year (optional);

(f)

Grade;

(g)

Net weight;

(h)

Maximum retail price (inclusive of all taxes);

(i)

Best Before _____ Month _____ Year;

(3)

The ink used for marking on packages shall be of such quality which shall not contaminate the Puwad seeds.

(4)

The authorised packer, may, after obtaining prior approval of the Agricultural Marketing Adviser or an officer authorised by him in this behalf, mark his private trade mark or trade brand on the graded packages provided that the same do not indicate quality other than that indicated by the grade designation mark affixed to the graded packages in accordance with these rules.

8.

Conditions of certificate of authorisation.

(1)

Every authorised packer shall follow all instructions specified by the Agricultural Marketing Adviser.

(2)

The authorised packer shall either set up his own laboratory as per norms or have access to an approved State Grading Laboratory or co-operative or association laboratory or a private commercial laboratory manned by a qualified chemist approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 9 of the General Grading and Marking Rules, 1988 for testing the quality of Puwad Seeds.

(3)

The premises shall be maintained in perfect hygienic and sanitary condition with proper ventilation and well lighted arrangement and the personnel engaged in these operations shall be in sound health and free from any infectious, contagious or communicable diseases.

(4)

The premises shall have adequate storage facilities with pucca floor and free from rodent and insect infestation.

(5)

The authorised packer and the approved chemist shall follow all instructions regarding testing, grading, packing, marking, sealing and maintenance of records which may be issued by the Agricultural Marketing Adviser or any other officer authorised by him in this behalf.

I

(see rule 5)

(Design of Agmark insignia)

Name of the Commodity.....

Grade.....

II

(see rules 3 and 4)

Grade designation and quality of Puwad Seeds (Cassia tora)

1. Puwad Seed shall be obtained from clean, healthy and mature pods or beans of the plant Cassia tora of family Leguminosae.

2.

(1)

. The minimum requirements of the Puwad Seeds shall be,-

(a)

wholesome mature, clean and dried;

(b)

of characteristic size, shape and colour;

(c)

free from living and dead insects, insect fragments, mites, larvae;

(d)

free from fungus infestation, mould growth;

(e)

free from added artificial colouring matter;

(f)

free from rodent hair and excreta;

(g)

free from the seeds of Argemone mexicana (Linn.) and other toxic weeds;

(h)

free from rancidity and mustiness;

(i)

the odour and flavour of the seeds when grind and moistened shall be fresh;

(j)

free from objectionable taste and flavour.

(2)

In case Puwad seeds is used as food, it shall comply with the restrictions in regard to residual levels of metal contaminants, insecticides and pesticides, crop contaminants, naturally occurring toxic substances and other food safety requirements as specified under the Prevention of Food Adulteration Rules, 1955.

(3)

In case Puwad seeds is used as food, it shall comply with the residual limits of heavy metals, pesticides, and other food safety requirements as laid down by the Codex Alimentarius Commission, or importing countries requirement for exports.

3. Criteria for grade designation :

Table

Special Requirements

Grade Designation

Extraneous matter

Broken seeds percent by mass(max)

Bulk density (mass/volume(min)

Insect Infected seeds percent by mass(max)

Total Ash, percent(max)

Moisture percent(max)

Acid insoluble ash percent(max)

Protein percent(min)

Crude fiber percent(max)

Organic, percent by mass(max)

Inorganic percent by mass(max)

1

2

3

4

5

6

7

8

9

10

11

Special

2.0

0.5

3.0

0.85

3.0

7.0

8.0

1.0

18.0

11.0

Standard

3.0

1.0

4.0

0.80

4.0

8.0

9.0

2.0

16.0

13.0

General

3.0

2.0

5.0
0.75
5.0
9.0
10.0
2.0
14.0
15.0

4. Other requirement. - (i) The condition of the Puwad seeds shall be so as to enable it,-

(a)
to withstand transport and handling; and

(b)
to arrive in satisfactory condition at the place of destination.

(ii)
Puwad seeds shall be stored in appropriate cool and dry place maintained in a clean and hygienic condition.

Explanation: For the purpose of this Schedule -

(a)
Extraneous matter means-

(i)
Organic matter consists of leaves, twigs, stems, organic matters other than the puwad seeds.

(ii)
Inorganic matter consists of metallic pieces, sand, gravel, dirt, pebbles, stones, lumps of earth, clay and mud, animal filth.

(b)
Insect infected seeds means seeds which are wholly or partially bored or eaten by weevils.

(c)
Whole seeds mean mature, sound and clean seeds.

(d)
Damaged seeds means kernels or pieces of kernels that are sprouted or internally damaged as a result of heat, microbe and moisture.

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